



CHAPTER xii.

An Act to provide for the granting of superannuation allowances to the officers and pensions to the servants of the Metropolitan Borough of Chelsea and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS the metropolitan borough of Chelsea in the administrative county of London (hereinafter referred to as "the borough") is a metropolitan borough constituted under the London Government Act 1899 and is under the management and control of the mayor aldermen and councillors of the borough (hereinafter referred to as "the Council"):

And whereas under and by virtue of the Superannuation (Metropolis) Act 1866 and the London Government Act 1899 the Council are empowered as the successors of the vestry of the parish of Chelsea to grant allowances in the nature of superannuation allowances or gratuities to persons who shall have served in an established capacity as officers of the Council:

And whereas it has been the custom of the Council to grant superannuation allowances to their officers and servants on retirement under the provisions of the Superannuation (Metropolis) Act 1866 aforesaid:

And whereas by the London (Existing Officers) Scheme 1900 it is provided that subject to the provisions of the Superannuation (Metropolis) Act 1866 in computing the time of the service for the purposes of that Act of an officer of the council of a metropolitan borough who has been transferred by or under the London Government Act 1899 to that council from any other authority and who before the transfer was an

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A.D. 1914. — officer to whom the Superannuation (Metropolis) Act 1866 applied any period during which the officer was in the service of that other authority shall be included:

And whereas in pursuance of the aforesaid scheme certain of the officers transferred to and now in the service of the Council are to the extent defined by such scheme entitled to the benefits conferred by the Superannuation (Metropolis) Act 1866:

And whereas doubts may arise as to whether certain persons transferred to or appointed by the Council are officers acting in an established capacity within the meaning of the Superannuation (Metropolis) Act 1866 and as to the powers and duties of the Council with reference to such persons and it is expedient that provision should be made with reference thereto as in this Act set forth:

And whereas it is expedient that a uniform practice should so far as possible be established for the granting by the Council of superannuation allowances or pensions to the whole of the officers and servants transferred to or appointed by the Council as aforesaid in manner provided by this Act:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

INTRODUCTORY.

Short title
and com-
mencement
of Act.

1. This Act may be cited as the Chelsea Borough Council (Superannuation and Pensions) Act 1914 and shall come into operation as from the first day of January one thousand nine hundred and fifteen.

2. This Act is divided into Parts as follows:--

- Part I.—Introductory.
- Part II.—Superannuation.
- Part III.—Pensions.
- Part IV.—Financial.

A.D. 1914,
 Division of
 Act into
 Parts.

3. In this Act unless the context otherwise requires the expression—

Interpreta-
 tion.

“Council” means the mayor aldermen and councillors of the metropolitan borough of Chelsea;

“General rate” means the rate or rates levied and collected in the borough and defined by section 10 of the London Government Act 1899 as the general rate;

“Officer” means every officer wholly in the service of the Council in an established capacity and every servant on weekly wages exceeding with emoluments other than overtime forty-five shillings a week in the permanent employ of the Council and duly placed on the establishment staff Provided that nothing in this definition shall be deemed to exclude such an officer who by consent of the Council holds other appointments;

“Servant” means every servant or workman not less than twenty years of age on weekly wages not exceeding with emoluments other than overtime forty-five shillings a week in the permanent employ of the Council and duly placed on the establishment staff;

“Service” means service under the Council or as regards an officer or servant transferred to the Council from any other authority by or under the London Government Act 1899 also service under such authority;

“Aggregated service” means service as above defined together with any service under an authority or authorities other than the Council or their predecessors which shall be aggregated and reckoned in accordance with the provisions of the section of this Act whereof the marginal note is “Service under other authorities”;

“Emoluments” includes all fees poundage and other payments made to any officer or servant as such by the Council for his own use also the money value of any

A.D. 1914.

apartments rations or other allowance in kind appertaining to his office or appointment but does not include casual payments or gratuities or payments in respect of overtime;

“Joint appointment” includes any office the tenure whereof is determined by the death removal resignation or incapacity of the holder of another office under the Council;

“Superannuation fund” means a fund to be established and administered by the Council in the manner described and provided in the section of this Act whereof the marginal note is “Superannuation fund”;

“Pension fund” means a fund to be established and administered by the Council in the manner described and provided in the section of this Act whereof the marginal note is “Pension fund”;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department or the London County Council made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

PART II.

A.D. 1914.

SUPERANNUATION.

4. Subject to the provisions of this Act every officer who shall have completed ten years' service or aggregated service and shall become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body (other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen's Compensation Act 1906 or any scheme made thereunder) or of old age or who shall have attained the age of sixty years and have completed a service or aggregated service of forty years or who shall have attained the age of sixty-five years shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale by this Act provided. An officer shall not be entitled to an allowance on the ground of old age unless he has completed the age of sixty years.

Title of
officers to
superannua-
tion allow-
ances.

Where an officer has attained the age of sixty-five years he shall cease to hold his office or employment and shall thereafter receive the superannuation allowance to which he may be entitled under this Act. Provided that the Council may by resolution extend his period of service for one year and so from time to time as they may deem expedient:

Provided always that notwithstanding anything in this Act contained any superannuation allowance which may be granted to any officer who at the commencement of this Act shall have attained the age of sixty years and have completed a service or aggregated service of forty years or shall have attained the age of sixty-five years shall be paid out of the general rate and not out of the superannuation fund.

5. The scale of superannuation allowances to be made to an officer under this Act shall be as follows (that is to say):—

After ten years' service or aggregated service ten sixtieths of the average amount of his salary or wages and emoluments during the five years ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment:

Scale of
superannua-
tion allow-
ances.

A.D. 1914. After eleven years' service or aggregated service eleven sixtieths of such average amount:

And so on up to a maximum after forty or more years' service or aggregated service of forty sixtieths of such average amount:

Provided that in the case of an officer transferred to the Council from an authority superseded by the Council to whom a compensation allowance has been granted under the London Government Act 1899 in respect of an office or employment abolished by the Council there shall be paid to him as a superannuation allowance the amount by which such superannuation allowance (calculated as provided in this section or on the maximum annual salary or wages and emoluments which he would have received had his office not been abolished whichever may be the greater) exceeds the annual amount of such compensation allowance.

Service
under other
authorities.

6. Subject to the deduction of the increased percentage amounts to be contributed in that behalf as hereinafter provided all periods of service by an officer other than an officer to whom a compensation allowance has been granted under the London Government Act 1899 rendered before his appointment by the Council or their predecessors under and as an officer of any authority or authorities to which the Metropolis Management Acts 1855 to 1893 the Vestries Acts 1818 to 1853 the Elementary Education Act 1870 the Public Health (London) Act 1891 the Public Health Acts the Public Libraries Acts 1892 and 1893 the Baths and Washhouses Acts 1846 to 1882 the Burial Acts the Local Government Act 1888 the Local Government Act 1894 the Union Assessment Committee Acts the Valuation (Metropolis) Act 1869 the Municipal Corporations Act 1882 the Poor Law Officers' Superannuation Act 1896 the London Government Act 1899 or one or more of such Acts apply or have applied and whether the duties or powers of such authority or authorities shall have been transferred to the Council or not shall be aggregated and reckoned for the purposes of this Act whether the whole time of such officer has been devoted to such service or not:

Provided that no such period of service shall be so aggregated and reckoned in a case where an officer is unable to prove to the reasonable satisfaction of the Council within a

period of six months from the commencement of this Act that he has been in the service or employment of any such authority or authorities and no such period of service shall be so aggregated and reckoned which has been or may be aggregated and reckoned for the purpose of superannuation allowances or gratuities under any of the aforesaid Acts: A.D. 1914.

Provided also that an officer appointed prior to the passing of this Act shall be entitled by notice in writing within six months thereafter to require that all or any period or periods of service under any authority or authorities whereof the duties or powers have not been transferred to the Council shall not be so aggregated and reckoned:

And further provided that in the case of an officer appointed subsequently to the passing of this Act no such period of service shall be so aggregated and reckoned unless such officer declares prior to his appointment and proves to the satisfaction of the Council within a period of three months from the date of such appointment that he has been in the service or employment of any such authority or authorities and the Council on the application of such officer in such case shall at their discretion direct whether the whole or any part of any such period of service shall or shall not be so aggregated and reckoned:

And further that no such period of service shall be so aggregated and reckoned which has been or may be reckoned for the purpose of superannuation allowances or gratuities under any of the aforesaid Acts.

7. Where for the due and efficient discharge of his duties any officer is required to possess professional or other peculiar qualifications not ordinarily to be acquired in the Council's service the Council may in case of existing officers forthwith after the commencement of this Act and in the case of officers to be thereafter appointed at the time of making the appointment or within three months thereafter direct that a number of years not exceeding ten shall be added and reckoned for the purposes of this Act: As to officers having special qualifications.

Provided always that no period shall be added unless the officer shall at the time of his appointment have attained the full age of thirty years and provided also that in the case of any officer appointed by the Council after the passing of this

A.D. 1914. Act and having the benefit of the addition of a number of years as in this section mentioned such officer shall pay or contribute annually in manner provided by this Act for such added period of ten years or part thereof an additional sum equivalent to one per centum of the annual salary and emoluments received by such officer and provided that nothing in this section contained shall entitle any such officer appointed after the passing of this Act to receive any superannuation allowance until he shall have completed ten years' service under the Council.

This section shall not apply to any officer who aggregates periods of service under any local authority or authorities to which the Acts mentioned in the section of this Act whereof the marginal note is "Service under other authorities" apply or have heretofore applied.

Forfeiture
for fraud &c.

8. An officer who is dismissed or resigns or otherwise ceases to hold his office or employment in consequence of any offence of a fraudulent character or of grave misconduct shall forfeit all claim to any superannuation allowance under this Act in respect of his previous service or aggregated service.

Return of
contributions
and power
to grant
superannua-
tion allow-
ances in
certain
cases.

9. An officer who has not become entitled to a superannuation allowance and who voluntarily resigns his office or employment or loses his office or employment by reason of a reduction of staff or of any alteration of areas or boundaries or otherwise ceases to hold his office or employment by reason of bodily injury not occasioned by his own default or of any other cause whatever other than his own misconduct shall be entitled to receive a sum equal to the amount of all his contributions under this Act:

Provided that when loss of office or employment occurs in a case in which the death or insanity of one of the holders of a joint appointment vacates the office of the other the officer whose office or employment is so vacated shall unless he is reappointed by the Council be entitled to receive during life a superannuation allowance according to the scale provided by this Act if such officer has attained the age of fifty years or has served for not less than twenty years.

Return of
contributions
in case of
death.

10. In the event of an officer dying before becoming entitled to or receiving a superannuation allowance under this

Act the Council shall pay to his legal personal representatives out of the superannuation fund a sum not exceeding the amount of the contributions made by such officer under this Act and not less than one half of that amount. A.D. 1914.

11. Special notice in writing shall be given with the ordinary agenda paper to every member of the Council of the time at which any proposal to return contributions to an officer will be considered. Notice of proposal to return contributions.

12. Every superannuation allowance granted under this Act shall be payable to or in trust for the officer and shall not be assignable or chargeable with his debts or other liabilities. Allowance not assignable.

13. Subject to the provisions of this Act every officer in the service or employment of the Council shall contribute to the superannuation fund a percentage amount of his salary or wages and emoluments according to the scale provided by this Act such amount to be deducted by the Council from the salary or wages and emoluments payable to him and to be carried to the credit of and form part of the superannuation fund. Obligation of officers to contribute.

14. The percentage amounts to be deducted for the purposes of the superannuation fund shall subject to the provisions contained in the section of this Act whereof the marginal note is "Additional contributions in respect of service under other authorities" be as follows (that is to say):— Scale of contributions.

In the case of officers with less than five years' service or aggregated service at the passing of this Act or appointed after the passing of this Act two and a half per centum of the annual salary or wages and emoluments;

In the case of officers with more than five and less than fifteen years' service or aggregated service at the passing of this Act three per centum of the annual salary or wages and emoluments; and

In the case of officers with more than fifteen years' service or aggregated service at the passing of this Act three and a half per centum of the annual salary or wages and emoluments:

Provided that in the case of officers whose salary or wages and emoluments do not exceed one hundred and twenty pounds a year the percentage amounts to be deducted shall be two per centum of their annual salary or wages and emoluments:

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—

The percentage amounts aforesaid shall be deducted from each and every payment made to officers by way of salary wages or emoluments but such deductions shall not be calculated to fractions of one penny Provided that deductions in respect of emoluments other than monetary payments shall be made by instalments or otherwise as the Council may from time to time direct :

And further provided that in the case of an officer transferred to the Council from an authority superseded by the Council to whom a compensation allowance has been granted under the London Government Act 1899 in respect of an office or employment abolished by the Council the period of service under the Council's predecessors shall not be reckoned for the purposes of this section and if his actual annual salary or wages and emoluments shall be less than the maximum annual salary or wages and emoluments which he would have received if such office had not been abolished then such maximum annual salary or wages and emoluments shall for the purposes of this section be deemed to be the annual salary or wages and emoluments.

Additional
contributions
in respect of
service
under other
authorities.

15. The periods of service in the case of officers who have served under any local authority or authorities other than the Council or their predecessors to which the Acts mentioned in the section of this Act whereof the marginal note is "Service under other authorities" apply or have heretofore applied shall be aggregated or reckoned for the purpose of ascertaining the percentage amounts to be deducted as aforesaid Provided that any officer in whose case any such period or periods are aggregated and reckoned as provided in the section last aforesaid shall at the option of the Council in addition to the contributions provided by the last preceding section of this Act pay or contribute either (A) the aggregate amount of any contributions and gratuities which may have been returned or paid to him on the termination of any period or periods of service which are so aggregated and reckoned as aforesaid by the local authority or authorities under whom such service has been spent or (B) annually by such instalments and in such manner as aforesaid for each aggregated period of five years or part thereof a sum equivalent to one per centum of the annual salary or wages and emoluments received by such officer.

16.—(1) The Council shall establish and administer a superannuation fund to which shall be carried and credited—

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Superannuation fund.

- (A) A sum hereinafter called “the primary annual contribution” to be raised annually in and by the general rate and to bear such a proportion to the total salaries of the officers as hereinafter provided;
- (B) All percentage amounts of salary or wages and emoluments deducted as in this Act provided and any amounts that may be received by the Council under the provisions of the section of this Act whereof the marginal note is “Additional contributions in respect of service under other authorities”;
- (C) All dividends and interest arising out of the investment of the superannuation fund or any part thereof; and
- (D) Such amount out of the general rate as may be required to meet any deficiency in the superannuation fund.

(2) The following shall be charged upon the superannuation fund (namely):—

- (A) Superannuation allowances made in pursuance of this Act;
- (B) Contributions or parts of contributions returned or paid in pursuance of this Act.

17. Within six months after the first day of January one thousand nine hundred and fifteen and at the expiration of every subsequent period of five years the condition of the superannuation fund shall be submitted by the Council to an actuary being a Fellow either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland appointed by them who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify what proportion in his opinion the primary annual contribution shall bear to the total salaries or wages and emoluments of the officers contributing to the fund so that such proportion shall at all times be as nearly constant and vary as little as may be and so that without further recourse to the general rate the superannuation fund as constituted under paragraphs (A) (B) and (C) of subsection (1) of the last preceding section shall be

Annual contribution by Council.

A.D. 1914. solvent (having regard to existing and prospective liabilities) and for the then ensuing quinquennial period the primary annual contribution shall be in the proportion so certified and shall be paid to the superannuation fund accordingly.

Investment
of super-
annuation
fund.

18.—(1) The Council may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of the superannuation fund and not required for the time being to meet payments arising under this Act but subject to the following conditions:—

(A) The moneys so used shall be repaid to the superannuation fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan under the statutory borrowing power would be repayable:

(B) Interest shall be paid to the superannuation fund on any moneys so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Council and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power:

(C) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

(2) Any moneys forming part of the superannuation fund which are not so used shall be invested in any statutory securities.

Saving for
existing
officers.

19. Any officer in the service or employment of the Council at the time of the passing of this Act may at any time ~~before the commencement of this Act~~ signify in writing to the Council his intention not to avail himself of the provisions of this Act and in that event it shall not be obligatory on him notwithstanding anything in this Act contained to make any contributions or submit to any deductions from his salary or

wages under this Act nor shall he be entitled to receive any superannuation allowance or other benefit under this Act Any officer who has given such notice as aforesaid or who at the commencement of this Act shall have attained the age of sixty-five years as mentioned in the proviso to the section of this Act whereof the marginal note is "Title of officers to superannuation allowances" shall if entitled immediately before the date of the passing of this Act to any benefits conferred by the Superannuation (Metropolis) Act 1866 or the Poor Law Officers' Superannuation Act 1896 remain subject to the provisions of such Acts as if this Act had not been passed and those provisions shall for the purpose of this enactment continue in force notwithstanding the provisions of the section of this Act whereof the marginal note is "Acts of 1866 and 1896 to cease to apply."

A.D. 1914.

20. Except as hereinbefore provided the Superannuation (Metropolis) Act 1866 and the Poor Law Officers' Superannuation Act 1896 shall cease to apply to the Council and its officers as from the commencement of this Act but this provision shall not affect the payment of any superannuation allowance granted before the commencement of this Act nor any right or liability acquired or accrued nor anything duly done or suffered before the commencement of this Act.

Acts of 1866 and 1896 to cease to apply.

21. Any question which may arise between the Council and any officer as to the right to or the amount of a superannuation allowance or the amount of the contribution of such officer shall in default of agreement be submitted to arbitration in accordance with the provisions of the Arbitration Act 1889.

Arbitration.

22. The provisions of sections 4 to 21 inclusive of this Act shall be registered under the Friendly Societies Act 1896 as if the same were the rules of a friendly society registered under that Act and shall have effect as such rules and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply (A) as if the Council were the trustees of such society (B) as if the superannuation fund were the funds of such society (C) as if the contributors to such fund were the members of such society and (D) as if the accounts of such fund as audited by the

Application of provisions of Friendly Societies Act 1896.

A.D. 1914. district auditor appointed by the Local Government Board were
--- the annual return of the receipts and expenditure funds and
effects required by section 27 of the said Act.

PART III.—PENSIONS.

Title of
servants to
pensions.

23.—(1) Subject to the provisions of this Act every
servant who shall be a contributor to the pension fund and

(A) Shall have completed ten years' service and shall
become incapable of discharging his duties with
efficiency by reason of permanent infirmity of mind
or body (other than permanent incapacity due to an
injury in respect of which he receives compensation
under the Workmen's Compensation Act 1906 or any
scheme made thereunder) or of old age; or

(B) Shall have attained the age of sixty years and have
completed a service of forty years; or

(c) Shall have attained the age of sixty-five years;

shall be entitled on resigning or otherwise ceasing to hold his
employment to receive during life out of the pension fund a
pension according to the scale by this Act provided.

(2) A servant shall not be entitled to a pension on the
ground of old age unless he has completed the age of sixty
years.

(3) Where a servant has attained the age of sixty-five
years he shall cease to hold his employment and shall there-
after receive the pension to which he may be entitled under
this Act Provided that the Council may by resolution extend
his period of employment for one year and so from time to
time as they may deem expedient.

(4) Provided always that (notwithstanding anything in this
Act contained) any pension which may be granted to any
servant who at the commencement of this Act shall have
attained the age of sixty years and have completed a service of
forty years or shall have attained the age of sixty-five years
shall be paid out of the general rate and not out of the pension
fund.

(5) And further provided that any servant who in respect
of permanent incapacity due to an injury receives under the

Workmen's Compensation Act 1906 or any scheme made there- A.D. 1914.
under compensation of a less amount than the pension to which
he would have been entitled if he had been entitled to receive
a pension under this section shall be entitled to receive the
amount by which such pension exceeds such compensation.

24. The scale of pensions to be paid to a servant entitled Scale of
pensions.
to a pension pursuant to the provisions of the section of this
Act whereof the marginal note is "Title of servants to
pensions" who shall have completed thirty years' service shall
be as follows (that is to say):—

A servant who at the time of ceasing to hold his employ-
ment was contributing four pence per week to the fund
twelve shillings and sixpence per week;

A servant who at the time of ceasing to hold his employ-
ment was contributing five pence per week fifteen
shillings per week;

A servant who at the time of ceasing to hold his employ-
ment was contributing six pence per week seventeen
shillings and six pence per week;

A servant who at the time of ceasing to hold his employ-
ment was contributing seven pence per week one pound
per week;

A servant who at the time of ceasing to hold his employ-
ment was contributing eight pence per week twenty-two
shillings and sixpence per week.

The pension to be paid to a servant who becomes entitled
to and receives a pension before he has completed thirty years'
service shall be reduced by one-thirtieth for every year's or part
of a year's service less than thirty years and a pension to be
paid to a servant who becomes entitled to and receives a pension
after he has completed thirty years' service shall be increased
by one thirtieth for every complete year of service over and
above thirty years up to a maximum of forty years' service:

Provided that in the event of a servant being reduced to a
lower wage he may if he so desire continue to contribute to
the pension fund at the same rate as at the time immediately
before the reduction in which case he shall be entitled to the
scale of pension covered by such contribution.

A.D. 1914.

Obligation of
servants to
contribute.

25. Subject to the provisions of this Act every servant in the employment of the Council shall contribute to the pension fund according to the scale provided by this Act such amount to be deducted by the Council from the wages and emoluments payable to him and to be carried to the credit of and form part of the pension fund.

Scale of con-
tributions to
pension
fund.

26. The amounts to be deducted for the purposes of the pension fund shall be as follows (that is to say):—

In the case of servants whose wages and emoluments other than overtime do not exceed twenty-five shillings per week four pence per week;

In the case of servants whose wages and emoluments other than overtime exceed twenty-five shillings per week but do not exceed thirty shillings per week five pence per week;

In the case of servants whose wages and emoluments other than overtime exceed thirty shillings per week but do not exceed thirty-five shillings per week six pence per week;

In the case of servants whose wages and emoluments other than overtime exceed thirty-five shillings per week but do not exceed forty shillings per week seven pence per week;

In the case of servants whose wages and emoluments other than overtime exceed forty shillings per week eight pence per week:

Provided that in the case of any servant whose wages and emoluments other than overtime do not exceed twenty shillings per week no such deduction shall be made except on the request in writing of such servant and after such request the subsequent period of service of such servant shall be reckoned "years' service" under the provisions of this Act but any servant from whose wages and emoluments no such deduction is made shall not be entitled to receive any pension or other benefit under this Act.

Pension
fund.

27.—(1) The Council shall establish and administer a pension fund to which shall be carried and credited—

(A) A sum called "the primary annual contribution" to be raised annually in and by the general rate and to

bear such a proportion to the total wages of the servants as hereinafter provided ; A.D. 1914.

- (B) All contributions of servants deducted as in this Act provided ;
- (C) All dividends and interest arising out of the investment of the pension fund or any part thereof ; and
- (D) Such amount out of the general rate as may be required to meet any deficiency on the pension fund.

(2) The following shall be charged upon the pension fund (namely) :—

- (A) Pensions made in pursuance of this Act ;
- (B) Contributions or parts of contributions returned or paid in pursuance of this Act.

28. The sections of Part II. of this Act whereof the marginal notes are “Forfeiture for fraud &c.” “Return of contributions and power to grant superannuation allowances in certain cases” “Return of contributions in case of death” “Notice of proposal to return contributions” “Allowance not assignable” “Annual contribution by Council” “Investment of superannuation fund” “Saving for existing officers” “Acts of 1866 and 1896 to cease to apply” “Arbitration” and “Application of provisions of Friendly Societies Act 1896” shall with the necessary modifications extend and apply to and for the purposes of this Part of this Act and for such purposes the said sections shall be construed as if the words “servant” “pension fund” and “pension” had been substituted therein for the words “officer” “superannuation fund” and “superannuation allowance” respectively wherever they occur :

Application of certain sections of Part II. of this Act.

Provided that nothing contained in the section of Part II. of this Act whereof the marginal note is “Acts of 1866 and 1896 to cease to apply” shall extend or apply to the case of any servant from whose wages and emoluments no deduction is made under the section of this Part of this Act whereof the marginal note is “Scale of contributions to pension fund” and any such servant who would be entitled to any benefits conferred by the Superannuation (Metropolis) Act 1866 or the Poor Law Officers’ Superannuation Act 1896 shall remain subject to the provisions of such Acts as if this Act had not been passed.

[Ch. xii.] *Chelsea Borough Council* [4 & 5 GEO. 5.]
(*Superannuation and Pensions*) Act, 1914.

A.D. 1914.

PART IV.

FINANCIAL.

Costs of Act.

29. All the costs charges and expenses preliminary and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate.

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E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.